

UNITED STATES DISTRICT COURT  
SOUTHERN DISTRICT OF NEW YORKMICHAEL OUTERBRIDGE  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

(In the space above enter the full name(s) of the plaintiff(s).)

-against-

The City Of New York, et, al.  
\_\_\_\_\_Det. Shannon Brooks, Shield #03463  
\_\_\_\_\_P.O. Jorge Tobon, Shield #9637  
\_\_\_\_\_Det. Angus McKenzie, Shield #06284  
\_\_\_\_\_P.O. Keith Knight, Shield #2711  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)

**I. Parties in this complaint:**

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff Name Michael Outerbridge  
ID # 11A1446  
Current Institution QUEENSBORO CORRECTIONAL FACILITY  
Address 47-04 VAN DAM STREET LONG ISLAND CITY,  
NEW YORK 11101-3809

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

USDS SDNY  
DOCUMENT  
ELECTRONICALLY FILED  
DOC #:  
DATE FILED: 10/7/11**COMPLAINT**

under the  
Civil Rights Act, 42 U.S.C. § 1983  
(Prisoner Complaint)

Jury Trial: ☒ Yes ☐ No  
(check one)

AMENDED COMPLAINT  
11 CIV. 3843 (RJS)(KNF)

Defendant No. 1 Name Det. Shannon Brooks, Shield # 03463  
Where Currently Employed NYPD, NYCPD; at 25th Pct.  
Address 120 E.119th St.  
New York, N.Y. 10023.

Defendant No. 2 Name P.O. Jorge Tobon, Shield # 9637  
Where Currently Employed NYPD, NYCPD; at 25th Pct.  
Address 120 E.119th St.  
New York, N.Y. 10023.

Defendant No. 3 Name Det. Angus McKenzie, Shield # 06284  
Where Currently Employed NYPD, NYCPD; at 25th Pct.  
Address 120 E.119th St.  
New York, N.Y. 10023.

Defendant No. 4 Name P.O. Keith Knight, Shield # 2711  
Where Currently Employed NYPD, NYCPD: at 25th Pct.  
Address 120 E119th St.  
New York, N.Y. 10023.

Defendant No. 5 Name \_\_\_\_\_ Shield # \_\_\_\_\_  
Where Currently Employed \_\_\_\_\_  
Address \_\_\_\_\_  
\_\_\_\_\_

## II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

- A. In what institution did the events giving rise to your claim(s) occur? At the 25th Pct.,  
located at 120 E.119th St. New York, N.Y. 10023.
- B. Where in the institution did the events giving rise to your claim(s) occur? Inside the hold-  
ing Pen Cell Area.
- C. What date and approximate time did the events giving rise to your claim(s) occur? At 11:35am.,  
hours, On 29 SEP. 2007.

D. Facts: On the morning Of 29 SEP. 2007; at apprx. 11:35am. hrs., Plaintiff were walking to open his book stand located at 127th St. and Lenox Ave. when plaintiff were approached by an person who were an under cover police officer trying to purchase drugs. unknowingly this person were an I/C Officer. I told him to leave me alone I dont know where to by drugs. this person insisted I do know where to buy drugs and continued to harass me to buy drugs for him. I again told this person to leave me alone or we would be fighting. at time the officer followed me to the corner of 127th St and 5th Ave. where (4) four other plain clothes officer's exited a car and Van and started assaulting me and knocking me to the ground and stomping me, punching me and kicking me in my face, head and chest, and ribcage area causing extreme pain and suffering to my upper body and head area causing swelling, trauma and dizziness. plain clothes officer Shannon Brooks, shield #03463; pinned me to the ground and punched me in my face and head and while he punched and missed, he fractured his hand punching the sidewalk, while the other officer's named herein, stomped, punched, beat and kicked me. none of these officer's identified themselves as officer's, nor did they read any miranda warnings to me while placing me under arrest. Officer's Shannon Brooks, shield #03463; and Angus McKenzie, shield # 06284; lied upon me stating I broke his hand flailing my arms while resisting arrest.

What happened to you?

Who did what?

Was anyone else involved?

Who else saw what happened?

Plaintiff were threatened with more unlawful physical violence after arriving the 25th pct., by police officer Jorge Tobon shield #9637.. stated: we will beat you again if you continue to ask for a prisoner's property receipt voucher, consisting of my cell phone and house keys. I were denied a copy of this document after being threatened by this officer. No one else were involved. plaintiff were also threatened with more physical violence by Det. Shannon Brooks, shield # 03463., who stated: Im going to hurt you real bad if my hand is broken. these Officer's listed herewithin violated my New York State Constitutional right's as a citizen of the United States Of America. Each of these officer's acting under the color of State Law, violated my civil right's under the Constitutional Amendments of the U.S.C.A. 4th, 5th, 6th, 8th, 13th, and 14th Amend. These officer's who are responsible for using unnecessary and unprovoked violence by assaulting the plaintiff. These officer's are in violation of the rules and regulations of the NYPD departmental guidelines. These officer's, Det. Shannon Brooks, shield #03463; P.O. Jorge Tobon, 9637; Det. Angus McKenzie, shield # 06284; and P.O. Keith Knight, shield #2711; all acting under the color of State Law, violated plaintiff's Federally protected right's by deliberately and directly assaulting plaintiff by using blunt force and police brutality. These officer's breached their duty and responsibility of protecting plaintiff's right's as they let each other as fellow officer's assault and hurt the plaintiff. these officer's who are public officials assigned to the municipality of the City Of New York et. al. which deprived plaintiff of his federally protected right's under the U.S.C.A. guidelines listed herein. In doing so, the official policy and/or custom that are authorized by the City Of New York et. al. caused Const. A. injury to the plaintiff of pain and suffering and cruel and unusual punishment. Several people from the community who know me, witnessed what happened as these police officer's assaulted me on this day. plaintiff's associate Mr. Richard Porter, also witnessed this assault by these officer's listed herein because after, these officer's gave him my bicycle after aresting me unwarrantly.

Plaintiff also alleges his human right's were violated as were his constitutional right's at the time of this police brutality and malicious assault that were discriminative and prejudice to the plaintiff's civil and physical well being. Plaintiff were unlawfully arrested and falsely imprisoned for crimes he did not committ. The City of New York et. al. being liable. The integrity of the plaintiff's Civil and Human Right's have III. Injuries: been violated.

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received. Plaintiff suffered swelling to his face and my ribcage after being stomped, punched, kicked and beaten by these officer's listed herein. Plaintiff suffered loss of memory of his mental ability, mental anguish, mental cruelty, psychological disorder and mental disorder plaintiff were denied medical treatment by these officer's until he were transferred to the NYC DOC at AMKC, C-95 Riker's Island. Plaintiff suffered emotional distress, Mental Depression, and continued pyschological disorder and dizziness. Plaintiff suffered false arrest, false imprisonment, false accusations, false allegations, Malicious, Vindictive, and Prejudice prosecution, pain and suffering, cruel and unusual punishment. Plaintiff decided against taking the pyschological Medications because of the harmful and hazardous side effects. Plaintiff were given Ibuprofin 600mg. for pain. Plaintiff requested to be taken to the hospital but were denied. Plaintiff has been psychologically damaged by this ordeal where as in the future he may have to begin taking pysch. Meds. Plaintiff were unnecessarily assaulted by these officer's for no official reason. Plaintiff has the impression that all police are negative and violent because of this incident.

#### IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act ("PLRA"), 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

A. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility?

Yes \*  No

If YES, name the jail, prison, or other correctional facility where you were confined at the time of the events giving rise to your claim(s).

AMKC. C-95, At 18-18 Hazen St. East Elmhurst, New York

11370.

B. Does the jail, prison or other correctional facility where your claim(s) arose have a grievance procedure?

Yes \*  No   Do Not Know

C. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose cover some or all of your claim(s)?

Yes   No \*  Do Not Know

If YES, which claim(s)? None, Not an in-house facility matter.

D. Did you file a grievance in the jail, prison, or other correctional facility where your claim(s) arose?

Yes \*  No

If NO, did you file a grievance about the events described in this complaint at any other jail, prison, or other correctional facility?

Yes   No

E. If you did file a grievance, about the events described in this complaint, where did you file the grievance?

AMKC. C-95, 18-18 Hazen St. East Elmhurst, New York 11370.

1. Which claim(s) in this complaint did you grieve? False Arrest, False Imprisonment, False Accusations., Malicious, Vindictive, Prejudice prosecution, Mental Anguish, Mental Cruelty, Psychological Abuse, Police Brutality. Crl-U/P.

2. What was the result, if any? None, Plaintiff filed a claim with the grievance, directly to the comptroller's Office. in receipt of claim #

3. What steps, if any, did you take to appeal that decision? Describe all efforts to appeal to the highest level of the grievance process. I was informed by the grievance Officer P.Jefferson, it is not a facility matter, therefore it were not an grievable issue, of the NYC-DOC, Grievance Process. I then appeal to the NYC- Board Of Correction, who told me also it were not an facility matter. Of NYC- DOC.

F. If you did not file a grievance:

1. If there are any reasons why you did not file a grievance, state them here:



GRIEVANCE FILED; 18 NOV. 2007; 23 JUL. 2010., 10 AUG. 2010.

2. If you did not file a grievance but informed any officials of your claim, state who you informed, when and how, and their response, if any: GRIEVANCE FILED.

G. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies. Plaintiff called the City Of New York Board Of Correction to file a complaint and were told A grievance of this measure were not within the NYC-DOC guidelines because the incident did not occur on the grounds of the NYC-DOC. Therefore the grievance procedure could not resolve my complaint., On the 23 JUL. 2010; and On 10 AUG. 2010. A grievance were filed On the 18 NOV. 2007, at the start of this case assigned to Dkt. #2007NY074132; InD.#4934N/07; to which I were never called to a hearing by the I.G.R.C. to resolve the issue., relating to the false arrest, false imprisonment, false accusations, Malicious, Vindictive, and prejudice prosecution, to which all charges were dismissed and sealed in favor of the accused pursuant to Cpl.160.50; and InD. #0071N/08; under same Docket #. Plaintiff are appealing the procedure of dismissal for this InD.#. that were dismissed unfairly and prejudicially by the judge.

**Note:** You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies. The Dkt.#2007NY074132; InD.#04934/07; were dismissed On 27 NOV. 2007; InD.#00071/08; under the same Dkt.#; were obtained On 25 JAN. 2008; and and Consolidated with InD.#03709/09; and solidified On 26 APR. 2010.

V. **Relief:** and dismissed and sealed On the 29 & 30 JUN. 2010.

State what you want the Court to do for you (including the amount of monetary compensation, if any, that you are seeking and the basis for such amount). Plaintiff states a claim On the grounds upon which relief may be granted in that Plaintiff's Federally protected right's were violated by officials acting under the color of state law deprived the Plaintiff of his constitutional right's secured by the USCA. 4th Amend. Plaintiff states a claim upon which relief may be granted in which the officials acting under the color of state law violated Plaintiff's federally protected right's secured by the USCA. 5th Amend. Plaintiff states a claim upon which relief may be granted upon in that the officials acting under the color of state law violated Plaintiff's federally protected right's secured by the USCA. 6th Amend. of the USA, Plaintiff states a claim upon which relief may be granted in that the officials acting under the color of State Law violated plaintiff's federally protected right's secured by the USCA. 8th Amend. of the USA, when these officials violently beat and assaulted me. Plaintiff's states a claim upon which relief may be granted in that the officials acting under the color of State Law violated plaintiff's federally protected right's secured by the USCA. 13th and 14th Amend. of the USA., in that these officials deliberately and directly inflicted pain and suffering and intentional cruel and unusual punishment. Plaintiff states a claim upon which relief may be granted in that these officials employed by the City Of New York et, al., knowingly, willingly and unlawfully violated and deprived the Plaintiff of his federally protected right's by assaulting and attacking him without probable cause, who were acting under color of State Law.

Plaintiff's Human Right's were violated and disrespected and damaged by these officials listed herein who are authorized as employees of the City Of New York et, al., to execute and administer the Law accordingly, failed to protect the Plaintiff from assaultive behaviour of these Officials acting under the color of State Law violated Plaintiff's federally protected right's secured by the USCA. Amend. Laws of the USA. Plaintiff states a claim upon which relief may be granted in the amount of five (5) MILLION dollars for the false arrest, false imprisonment, false accusations, false allegations, defamation and assassination of character. Plaintiff states a claim upon which relief may be granted in the amount of \$ five (5) MILLION dollars for the unlawful imprisonment, Malicious Vindictive and Prejudice prosecution. Plaintiff states a claim upon the grounds which relief may be granted in the amount of five (5) MILLION DOLLARS, for the pain and suffering and the cruel and unusual punishment the Plaintiff has suffered due to the negligence of the City Of New York et, al., in the amount of Fifteen (15) MILLION DOLLARS, TOTAL.

**VI. Previous lawsuits:**On  
these  
claims

- A. Have you filed other lawsuits in state or federal court dealing with the same facts involved in this action?

Yes \_\_\_\_ No \_\_\_\_ \*

- B. If your answer to A is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another sheet of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff NONEDefendants NONE

2. Court (if federal court, name the district; if state court, name the county) NONE

3. Docket or Index number NONE

4. Name of Judge assigned to your case NONE

5. Approximate date of filing lawsuit NONE

6. Is the case still pending? Yes \_\_\_\_ No \_\_\_\_ \*

If NO, give the approximate date of disposition NONE

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) NONE

On  
other  
claims

- C. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?

Yes \_\_\_\_ No \_\_\_\_ \*

- D. If your answer to C is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff NONEDefendants NONE

2. Court (if federal court, name the district; if state court, name the county) " " "

3. Docket or Index number " " "

4. Name of Judge assigned to your case " " "

5. Approximate date of filing lawsuit " " " "

6. Is the case still pending? Yes \_\_\_\_ No \_\_\_\_ \*

If NO, give the approximate date of disposition NONE

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) NONE

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 30 day of September, 2011.

Signature of Plaintiff

Inmate Number

Institution Address

Michael Antunovich  
#11A1446  
Queensboro Corr. Inst.  
At 47-01 Van Dam St  
Long Island, New York  
11101-3801

**Note:** All plaintiffs named in the caption of the complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this 30 day of September, 2011, I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff:

Michael Antunovich

UNITED STATES DISTRICT COURT  
SOUTHERN DISTRICT OF NEW YORK

MICHAEL OUTERBRIDGE

(In the space above enter the full name(s) of the plaintiff(s)/petitioner(s).)

11 Civ. 3843 (RJS) (KNF)

- against -

**AFFIRMATION OF SERVICE**

CITY OF NEW YORK ET. AL.

Det. Shannon Brooks, shield #03463

P.O. Jorge Tobon, shield #9637

Det. Angus McKenzie, shield #06284

P.O. Keith Knight, shield #2711

(In the space above enter the full name(s) of the defendant(s)/respondent(s).)

I, MICHAEL OUTERBRIDGE, declare under penalty of perjury that I have  
(name)

served a copy of the attached 42 U.S.C. 1983 AMENDED COMPLAINT

(document you are serving)

upon PRO-SE CLERKS OFFICE

(name of person served)

whose address is AT THE UNITED

STATES DISTRICT COURT SDNY, AT 500 PEARL ST. NEW YORK, N.Y. 10007.

(where you served document)

by FIRST CLASS MAIL

(how you served document: For example - personal delivery, mail, overnight express, etc.)

Dated:

Long Island City, NY  
(town/city)

NY  
(state)

September 30 20 11  
(month) (day) (year)

Michael Outerbridge  
Signature

Queensboro Corr. Fac.  
Address

42-04 Vonn Dam St.  
City, State

Long Island City, New York  
Zip Code

11101-3801  
Telephone Number



## MEMORANDUM OF LAW.

Every person who, under color of any statute ordinance regulation custom or usage of any state or territory district of columbia subjectes or causes to be subjected any citizen of the United States or other person within the jurisdiction thereof, to the deprivations of any rights privileges shall be liable to the party injured in an action at law, suit in equity or other proceeding for redress. (emphasis added)

Intrusions upon constitutionally guaranteed rights must be based on more than inarticulate hunches or simple good faith on the part of an officer Terry v, Ohio 88 S.Ct. 1868, 392 U.S. 1-  
~~un~~questionably plaintiff was entitled to the protections of ~~his~~  
~~Constitutional Rights~~ 13 AND 14  
~~Fourth, Fifth, and Eighth~~ Amendments of the United States and New York State Constitution'. has he walked down the street Beck v, State of Ohio 397 U.S. 89, 85 S.Ct. 223 (1964) good faith on the part of the arresting officer's is not sufficient to withstand attack on constitutional validity of arrest without a warrant.

No Right is held more sacred or is more carefully guarded by common law than the right of every individual to possession and control of his own person free from all restraint's or interference' unless by clear and unquestionable authority of law, plaintiff was entitled to protection' of the Fourth <sup>5/6</sup> Eighth, ~~Thirteenth~~  
~~14/15~~ Amendments including the new York State Constitution. see Monroe v, Pape 81 S.Ct. 437, 365 U.S. 167 allegations of fact constituting a deprivation under the color of state authority of a right guaranteed by the Fourteenth Amendment satisfy requirements of the statute making any person under color of state statue

-2- Mem.

ordinance, deprives any citizen of his constitutional rights is liable to the party injured.

Section 1983 basically seeks to deter state actors from using the badge of authority to deprive individuals of their guaranteed rights and provide related relief. 42 U.S.C.A. 1983 to - provide redress for deprivations of rights caused by abuse of authority.

Guarantees of rights under the Fourth Fourteenth Fifth and Sixth  
8 And 13 amendments and the New York State Constitution apply to States through the Fourteenth Amendment see *Bills by Bills v, Homer Consol School Dist-* No 33 967 F.Supp 1063, The Conduct complained of in the plaintiffs Civil Rights Action under either view the doctrine of Judicial immunity does not protect the law enforcement officers from an action for malicious prosecution "if", the particular conduct complained of consisted-[has-herein] acts outside the scope of the officers official duties or authority.

The Defendants and conspirator's et al, have affirmative duty to intervene to protect the constitutional rights of citizens from the infringement by other law enforcement officers in his presents- see *Anderson v, Branen* 17 F.3d 552, *O'Neill v, Krzeninski* 839 F.2d 2,

To obtain summary judgment on qualified immunity grounds defendants failure to intercede to prevent illegal arrest, defendant can and will show that the only result a fair jury could possibly reach is that a reasonably competent police officer' faced with information available to non-intervening officer's at the time of the arrest, could disagree about the legality of arrest. see *Ricciuti v, NYC Transit, police Dept et al.* 124 F.3d 123 (U.S.Ct. App. 2 cir Aug 21, 1997)

3-MEM.

It has been held that evidence of dismissal of the criminal charge's [has herein at Bar] at the preliminary-hearing stage, though it is not conclusive as to want of probable cause, may nevertheless be evidence of want of probable cause. Ashland v, lapiner Motor Co 247 Iowa 596-75 N.W. 2d 357. Freeman v, Monticello police Dept 2003 WL 135751 (S.D.N.Y.) Under either view, the doctrine of judicial immunity does not protect law enforcement officer's from an action for **Malicious prosecution** if the particular conduct complained of consisted of acts outside the scope of the officers official duties.(Supra)

Plaintiff is entitled to compensatory damages upon a finding that police officer's use excessive force in efecting an arrest where there was No Lawful basis for the use of force. Atkins v, New York City 143 F.3d 100 Municipalities do not enjoy immunity from suit either absolute of qualified under 1983.

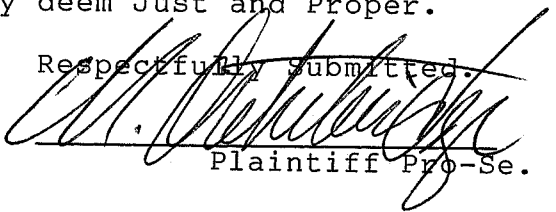
Wherefore, This action arises under and is brought pursuant to 42 U.S.C.A.

1983 to remedy the deprivation's under color of state law, of the right's guaranteed by the <sup>45, 6, 8th, 13, AND 14th Amendments</sup> Fourteenth, Fifth, Sixth and Fourth Amendment's of the United States Constitution and the New york State Constitution this Court has Jurisdiction over this action pursuant to 28 U.S.C. Sections 1331 and 1343 This cause of action arose in the Southern District of New York Therefore venue is proper under 28 U.S.C Section 1391(b)

Any and all such further relief this Court may deem Just and Proper.

cc:  
DATED 30 Sep. 2011.

Respectfully Submitted.

  
Plaintiff Pro-Se.